

The Customs Duties And Cesses (Conversion To Metric Units) Act, 1960

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The Customs Duties And Cesses (Conversion To Metric Units) Act, 1960

UNION OF INDIA

India

The Customs Duties And Cesses (Conversion To Metric Units) Act, 1960

Act 40 of 1960

Published on 21 September 1960

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The Customs Duties And Cesses (Conversion To Metric Units) Act, 1960

ACT NO. 40 OF 1960

1342.

[21st September, 1960]

An Act further to amend certain laws relating to customs duties and cesses for the purpose of adopting metric units in those laws.

BE it enacted by Parliament in the Eleventh Year of the Republic of India as follows:-

1.

Short title and commencement.

(1)
This Act may be called the Customs Duties and Cesses (Conversion to Metric Units) Act, 1960.

(2)
It shall come into force on such [date]
[1st October, 1960, vide Notification No. S.O. 2348, dated the 23rd September, 1960, see Gazette of India, Extraordinary, 1960, Pt. II, Section 3(ii), p. 545]
as the Central Government may, by notification in the Official Gazette, appoint. 2 to Rep. by the Repealing and Amending Act 2 to 9. Rep. by the Repealing and Amending Act, 1964 (52 of 1964), s. 2 and Sch. I.

2.
Amendment of Act 14 of 1923
- In the Indian Cotton Cess Act, 1923, (14 of 1923) in sub-section (1) of section 3, for the words `at the rate of four annas per standard bale of four hundred pounds avoirdupois, or in the case of unbaled cotton, of one anna per hundred pounds avoirdupois", the following words and figures shall be substituted, namely:-
"at the rate of twenty-five naye paise per bale of 181.4 kilograms or, in the case of unbaled cotton, of seven naye paise per fifty kilograms".

3.
Amendment of Act 24 of 1930
- In the Indian Lac Cess Act, 1930, (14 of 1930) in section 3, for the words "a cess at the rate of fourteen annas per maund in the case of lac, and ten annas per maund in the case of refuse lac", the following words shall be substituted, namely:-
"a cess at the rate of two rupees and thirty naye paise per quintal in the case of lac, and one rupee and seventy naye paise per quintal in the case of refuse lac".

4.
Amendment of Act 32 of 1934
- The Indian Tariff Act, 1934 (32 of 1934) shall be amended in the manner specified in the Schedule.

5.
Amendment of Act 7 of 1942
- In the Coffee Act, 1942, (7 of 1942)
(i)
in section 11, for the words "at such rate not exceeding six rupees per hundred weight", the words "at such rate not exceeding eleven rupees and eighty naye paise per quintal" shall be substituted;
(ii)
in section 12, for the words "at such rate not exceeding six rupees per hundredweight", the words "at such rate not exceeding eleven rupees and eighty naye paise per quintal" shall be substituted;
(iii)
in section 13, in sub-section (5), for the word "hundredweight", the word "quintals" shall be substituted;
(iv)
in the proviso to section 20,-
(a)
in clause (ii), for the words "two pounds avoirdupois", the words "one kilogram" shall be substituted;
(b)
in clause (iii), for the words "ten pounds avoirdupois", the words "five kilograms" shall be substituted;
(c)
in clause (iv), for the words "one pound avoirdupois", the words "five hundred grams" shall be substituted.

6.
Amendment of Act 10 of 1944
- In the Indian Coconut Committee Act, 1944, (10 of 1944) in sub-section (1) of section 3, for the words and letters "not exceeding four annas per cwt.", the words "not exceeding forty-nine naye paise per quintal", shall be substituted.

7.
Amendment of Act 9 of 1946
- In the Indian Oilseeds Committee Act, 1946, (9 of 1946) in sub-section (1) of section 3,-

(i)

in clause (a), for the words "at the rate of one anna per maund", the words "at the rate of seventeen naye paise per quintal" shall be substituted; and

(ii)

in clause (b), for the words "at the rate of two annas per maund", the words "at the rate of thirty-three naye paise per quintal" shall be substituted.

8.

Amendment of Act 29 of 1953

- In the Tea Act, 1953, (29 of 1953)-

(i)

in section 24, in clause (c), for the words "not exceeding ten pounds avoirdupois", the words "not exceeding five kilograms" shall be substituted, and

(ii)

in section 25, in sub-section (1), for the words "at the rate of four rupees per one hundred pounds", the words "at the rate of eight rupees and eighty naye paise per quintal" shall be substituted.

9.

Amendment of Act

45 of 1953

- In the Coir Industry Act, 1953, (45 of 1953) in sub-section (1) of section 13, for the words "at such rate not exceeding one rupee per hundred weight", the words "at such rate not exceeding two rupees per quintal" shall be substituted.

10.

Savings.

Nothing contained in this Act shall be deemed to affect the validity of any notification, rule or order issued under any of the enactments amended thereby and in force immediately before the commencement of this Act merely by reason of the fact that the rate of any customs duty or cess specified therein has been expressed in terms of annas, pice or pies or with reference to any weight or measure other than a standard mass or measure under the Standards of Weights and Measures Act, 1956(89 of 1956.) and every such notification, rule or order shall, until altered, repealed or amended by the Central Government or other competent authority, continue to have effect as if this Act had not been passed.

Schedule

- Rep. by the Repealing and Amending Act, 1964 (52 of 1964), s. 2 and Sch. I.

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